

Court No. - 40

Case :- WRIT - C No. - 10303 of 2025

Petitioner :- Afzal Khan

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Raj Kumar Kesari

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Shekhar B. Saraf,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. Heard learned counsel appearing on behalf of the petitioner, learned Standing Counsel appearing on behalf of the State and Sri Baleshwar Chatruvedi, learned counsel appearing on behalf of the respondent Nos.3 to 6.

2. This is a writ petition under Article 226 of the Constitution of India wherein the writ petitioner has prayed for the following substantial reliefs:

"i. Issue a writ, order or direction in the nature of mandamus directing the respondents concerned to make the final assessment and to pass the final order as per the 6.8 and 8.1 of Electricity Supply Code, 2005 under the strength of the order passed by the respondent no.3 dated 28.01.2025.

ii. Issue a writ, order or direction in the nature of certiorari quashing/setting aside the impugned citation/recovery certificate dated 15.05.2024 issued by the respondent no.7, during pendency of the present writ petition before this Hon'ble Court. (Annexure No.6 to the Writ Petition)."

3. Counsel appearing on behalf of the respondent Nos.3 to 6 submits that the recovery certificate impugned herein has been withdrawn. He further submits that a fresh notice has been issued to petitioner wherein a date has also been fixed for hearing.

4. In light of the submissions made above, the writ petition is disposed of with a direction to the authority concerned to grant an opportunity of hearing to the petitioner, and thereafter, pass a reasoned order in accordance with law, within a period of eight weeks from date.

Order Date :- 9.4.2025

Kuldeep

(Dr. Y. K. Srivastava, J.) (Shekhar B. Saraf, J.)